



U.S. Department
of Transportation

Research and
Special Programs
Administration

FEB 17 1998

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 12010
(FIRST REVISION)

EXPIRATION DATE: March 31, 1998

(FOR RENEWAL, SEE 49 CFR 107.109.)

1. GRANTEE: Laidlaw Environmental Service, Inc.
Columbia, South Carolina

(See Appendix A to this document for a list of additional grantees)

2. PURPOSE AND LIMITATIONS: This exemption authorizes the one-way, one-time transportation in commerce of non-DOT specification tanks containing solid sodium, a Division 4.3 material. This exemption provides no relief from any regulation other than as specifically stated herein.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR Section 173.244 in that a non-DOT specification packaging is authorized.
5. BASIS: This exemption is based on the application of Laidlaw Environmental Service, Inc. dated December 3, 1997, submitted in accordance with 49 CFR 107.117 and a determination that it is necessary to prevent significant injury to persons or property.
6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous materials description/proper shipping name	Hazard Class/Division	Identification Number	Packing Group
Sodium	4.3	UN 1428	I

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7. PACKAGING(S) and SAFETY CONTROL MEASURES:

a. PACKAGING - Packages prescribed are non-DOT specification tanks, constructed from stainless steel (304 and 316). The dimensions and weights of tanks are as follow:

	<u>Tank Height</u>	<u>Diameter</u>	<u>Tank Weight</u>	<u>Sodium Weight</u>
#1	11 ft 4 ft		1912 lbs	7200 lbs
#2	7 ft 2 ft		950 lbs	Trace of residue
#3	14 ft 2.5 ft		1000 lbs	4160 lbs
#4	4 ft 2 ft		280 lbs	Trace of residue

b. OPERATING CONTROLS - The sodium must be fused solid and completely covered by an inert gas blanket before shipment. The containers shall be placed on a flatbed trailer, secured with the use of tension chains and blocks, and covered with tarpaulin.

8. SPECIAL PROVISIONS:

a. Authorization is granted for the one-way one-time transportation of the tanks described in paragraph 7 above from Oak Ridge, Tennessee to Clarence, New York. The tanks must be shipped on an exclusive-use, placarded, motor vehicle.

b. Grantee must comply with all provisions of this exemption, and all other applicable requirements contained in 49 CFR Parts

c. MARKING - Two opposing sides of the tank must be marked with letter 2 inches high on a contrasting background, "DOT-E 12010".

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.10. MODAL REQUIREMENTS:

a. A copy of this exemption must be carried aboard each motor vehicle used to transport packages covered by this exemption.

b. Each tank tie down assembly must conform to the requirements of 49 CFR 393.100 through 393.104.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law 49 U.S.C. 5101 et seq.:

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- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Registration required by 49 CFR 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in 49 CFR 171.8 who performs a function subject to this exemption must receive training on the requirements and conditions of this exemption in addition to the training required by 49 CFR 172.700 thru 172.704.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must also inform the AAHMS, in writing, as soon as practicable of any incidents involving the package and shipments made under this exemption.

Issued at Washington, D.C.

for Ann Mazzullo
Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

2/17/98
(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

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